

Before the

**U.S. COPYRIGHT OFFICE
LIBRARY OF CONGRESS**

In the Matter of Section 1201 Study

Docket No. 2015-8

Comments of the American Foundation for the Blind

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THE AMERICAN FOUNDATION FOR THE BLIND

The American Foundation for the Blind (“AFB”) is a leading national advocate for blind, visually-impaired, and print-disabled individuals. AFB works to expand access and opportunity for those individuals via consumer publications, technology evaluation and development, public education, research, and public policy advocacy. As a publisher of conventional and electronic media and a holder of copyrights, AFB understands and remains committed to safeguarding the rights of producers of digital materials. At the same time, AFB is equally committed to ensuring that disabled individuals can make non-infringing, fair use of materials in all formats, including digital literary works. AFB has participated in every triennial rulemaking since the 2003 cycle, and has consistently advocated for an exemption class that would facilitate access to technologically locked eBooks.¹

BRIEF OVERVIEW OF COMMENTS

The following comments are responsive to questions 3 and 9 of the Office’s Notice and Request for Public Comment. AFB agrees with the Librarian of Congress that the Section 1201 “regulatory process . . . is at best ill-suited to address the larger challenges of access for blind and print-disabled.”² In fact, AFB believes that the access of blind, visually-impaired, and print-disabled individuals to legally-purchased literary works should not hinge upon a positive outcome in the triennial rulemaking proceeding. The rulemaking has become a burdensome and uncertain process for the Office and for proponents and opponents of exemption classes. Over time, the Office’s inquiry has become unmoored from Congress’s ultimate goal: protecting copyrighted works from piracy without impinging on legal, non-infringing uses of those works.

AFB is particularly well-positioned to describe this gradual mission-creep: it first advocated for an exemption class in 2003, and supported renewal of that class in the 2006 and 2010 rulemakings. AFB was surprised when the Register declined to recommend renewal of the exemption class in 2010, particularly because there was no evidence that eBook manufacturers had changed their products in a way that obviated the need for the exemption, and because the Office appeared to impose novel evidentiary requirements that did not appear in the text of Section 1201. Although the Librarian ultimately intervened to save the exemption that year, the process is still characterized by pervasive uncertainty, burdensome evidentiary requirements, and

¹ See generally Am. Found. for the Blind, Comment on Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies [hereinafter 2003 AFB Comment], Docket No. RM 2002-4, <http://copyright.gov/1201/2003/comments/026.pdf>; Am. Found. for the Blind, Comment on Exemption to Prohibition on Circumvention of Copyright Systems for Access Control Technologies [hereinafter 2006 AFB Comment], Docket No. RM 2005-11, http://www.copyright.gov/1201/2006/comments/discipio_afb.pdf; Am. Found. for the Blind, Comment on Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies [hereinafter 2010 AFB Comment], Docket No. RM 2008-8, <http://www.copyright.gov/1201/2008/comments/american-foundation-blind.pdf>; Am. Council of the Blind & Am. Found. for the Blind, Joint Comment on Exemption to the Prohibition of Circumvention of Copyright Protection Systems for Access Control Technologies [hereinafter 2012 AFB Comment], Docket No. RM 2011-7, http://www.copyright.gov/1201/2011/initial/american_foundation_blind.pdf; Am. Found. for the Blind, Petition for Exemption: Ebook Accessibility for People Who Are Blind, Visually Impaired, or Print Disabled [hereinafter 2015 AFB Comment], Docket No. RM 2014-07, http://copyright.gov/1201/2014/petitions/American_Foundation_for_the_Blind_et_al_1201_Initial_Submission_2014.pdf.

² Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, 75 Fed. Reg. 43,825, 43,839 (July 27, 2010) (codified at 37 C.F.R. 201.40) [hereinafter 2010 Final Rule].

disconnect from Congress's purpose. With these problems in mind, and with the benefit of thirteen years of experience with the process, AFB submits the following comments on the Office's notice of inquiry.

NOI QUESTION 3: SHOULD SECTION 1201 BE ADJUSTED TO PROVIDE FOR PRESUMPTIVE RENEWAL OF PREVIOUSLY GRANTED EXEMPTIONS-FOR EXAMPLE, WHEN THERE IS NO MEANINGFUL OPPOSITION TO RENEWAL-OR OTHERWISE BE MODIFIED TO STREAMLINE THE PROCESS OF CONTINUING AN EXISTING EXEMPTION? IF SO, HOW?

Yes, the Section 1201 process should be adjusted to provide for presumptive renewal of previously-granted exemptions. The process should provide for presumptive renewal even in the face of meaningful opposition, provided opponents do not show that the adverse impacts that initially justified the exemption are no longer relevant. In fact, the Copyright Office already has the authority under 17 U.S.C. § 1201 ("Section 1201") to provide for presumptive renewal, and it should adjust its existing process accordingly. After designating an exemption class, the Office should renew the class unless opponents establish that market changes have resolved the adverse impacts that justified the initial grant.

We understand that other comments have explained that the Office's requirement of a de novo showing of adverse impact at each triennial proceeding is rooted in shaky legal foundations; this comment will not reiterate those arguments.³ Rather, AFB's comment will explain how the triennial review process saddles exemption proponents with a significant practical burden. Even after AFB has successfully demonstrated that an exemption is warranted, and even when subsequent AFB exemption proposals have engendered no meaningful opposition (or no opposition at all),⁴ AFB still has had to invest significant amounts of time and resources, and the time and resources of legal representatives, to comply with the Office's evidentiary prerequisites. The de novo review process—ostensibly intended to serve as a "fail safe" mechanism that balances anti-circumvention with non-infringing use⁵—has become a never-ending exemptions treadmill, even when the exemption occasions little to no opposition. This comment will describe the current 1201 exemption process, illustrate some of the ways in which the process impairs those seeking authorization or reauthorization of an exemption, and explain why a different exemptions paradigm is desirable.

A. AFB has been a longstanding participant and advocate in the triennial Section 1201 rulemaking proceedings, and is well positioned to provide prospective on the process as a whole.

AFB has a long history of participation in the triennial rulemaking process under Section 1201, proposing classes of exceptions ultimately designated by the Librarian in 2003, 2006, 2010, 2012, and 2015. This participation comes with a cost, however, and AFB and its pro bono representatives have had to invest significant amounts of time and resources in explaining why these exemption classes are essential to ensuring equal access to digital literary works.

³ See Harvard Law School Cyberlaw Clinic, Comment Regarding Section 1201 Study, Docket No. 2015-8, at 3–7.

⁴ See Section 1201 Study: Notice and Request for Public Comment, 80 Fed. Reg. 81,369, 81,371 (Dec. 29, 2015).

⁵ See *id.* at 81,370.

2003 Proceeding. AFB first participated in the triennial rulemaking process in the 2003 round (the second triennial process), requesting an exemption for a class simply defined as “literary.” In that first seven-page submission, AFB briefly described Congress’s solicitude for the blind and disabled in the copyright context, explained how technological protection measures were inhibiting access to eBooks and other digital literary works, and provided a succinct list of technologically locked digital works that illustrated the problem.⁶ The Association of American Publishers (AAP) opposed the proposed exemption class, drawing a distinction between “access” and “accessibility” that the Register ultimately dismissed as a “red herring.”⁷ Although AFB did not provide exhaustive evidence detailing “the number of works or the particular works that prevented accessibility,” and “[d]espite the difficulty in establishing the exact scope of the [inaccessibility] problem,” the Register ultimately recommended designation of a tailored exemption class to address Section 1201’s adverse impacts on blind, visually-impaired, and print-disabled individuals.⁸ The Librarian accepted the Register’s recommendation, and adopted an exemption class of:

Literary works distributed in ebook format when all existing ebook editions of the work (including digital text editions made available by authorized entities) contain access controls that prevent the enabling of the ebook’s read-aloud function and that prevent the enabling of screen readers to render the text into a “specialized format.” For purposes of this exemption, “specialized format,” “digital text” and “authorized entities” shall have the same meaning as in 17 U.S.C. 121.⁹

2006 Proceeding. In the 2006 rulemaking, AFB submitted a one-page class exemption request seeking continuation of the 2003 exemption.¹⁰ In its supporting comment, AFB explained that the market situation remained largely the same: “copyright protection continue[d] to prevent access for people who [were] blind or visually impaired.”¹¹ The Register applied more scrutiny to the AFB’s arguments in the 2006 comment round, castigating the AFB for providing only a small sample of digital literary texts and failing to provide statistical evidence that disabled individuals were actually using the 2003 exemption.¹² Notwithstanding the perceived evidentiary lacunae, the Register—recognizing the dearth of meaningful opposition to renewal—recommended that the Librarian reauthorize the existing exemption class for another three years,

⁶ See generally 2003 AFB Comment.

⁷ See Recommendation of the Register of Copyrights in RM 2002-4 at 68, Rulemaking on Exemptions from Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies (Oct. 27, 2003) [hereinafter 2003 Recommendation], available at www.copyright.gov/1201/docs/registers-recommendation.pdf.

⁸ *Id.* at 75–76, 80–82.

⁹ Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, 68 Fed. Reg. 62,011, 62,014 (Oct. 31, 2003) (formerly codified at 37 C.F.R. 201.40) [hereinafter 2003 Final Rule].

¹⁰ See Am. Found. for the Blind, Proposed Class or Classes of Copyrighted Work(s) to Be Exempted [hereinafter 2006 AFB Proposed Exemption Class], Docket No. RM 2005-11, <http://www.copyright.gov/1201/2006/comments/discipio-sum.pdf>.

¹¹ See 2006 AFB Comment at 2.

¹² Recommendation of the Register of Copyrights in RM 2005-11 at 39, Rulemaking on Exemptions from Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies (Nov. 16, 2006) [hereinafter 2006 Recommendation], available at www.copyright.gov/1201/docs/1201_recommendation.pdf.

and incorporated AFB's suggested modifications to the exemption class.¹³ The Librarian agreed, and adopted the Register's recommendation for the modified class.¹⁴

2010 Proceeding. After proposing exemption classes in 2003 and 2006 that were supported more by first-hand anecdotal evidence than by extensive and expensive statistical studies, and having those exemptions recommended by the Register and adopted by the Librarian, AFB submitted a fifteen-page exemption proposal in the 2010 rulemaking cycle that was based on similar types and quantities of evidence.¹⁵ The Register upbraided the AFB for submitting an evidentiary record to renew a twice-granted exemption that she characterized as "even weaker than the minimal, borderline showing" made in AFB's 2006 submissions.¹⁶ Although there was no opposition to renewal of the existing exemption class,¹⁷ and despite AFB's best efforts to provide representative examples of technological problems associated with locked eBooks, the Register concluded that AFB's evidence "amount[ed] to the kind of de minimis showing that [did] not justify relief in [the Section 1201] proceeding."¹⁸ Professing support for broad accessibility for the blind and disabled, the Register nevertheless made clear that AFB carried the burden of overcoming its "unwillingness or inability to survey a more substantial number of book titles and to determine whether the titles they presented were accessible in any format."¹⁹ Finally, concluding that the absence of large-scale empirical evidence relating to use of the 2003 and 2006 exemption classes was evidence of the absence of a need for a continuing exemption, the Register declined to recommend the proposed exemption class for the following three-year period.²⁰

The Librarian of Congress, in an unprecedented and as yet unrepeated decision, ultimately rejected the Register's recommendation with regard to the AFB's proposed

¹³ *Id.* at 40.

¹⁴ Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, 71 Fed. Reg. 68,472, 68,475 (Nov. 27, 2006) (formerly codified at 37 C.F.R. 201.40) [hereinafter 2006 Final Rule]. The exemption class was modified to prioritize screen-reader accessibility, and was revised to include eBooks where all editions "contain access controls that prevent the enabling either of the book's read-aloud function or of screen readers that render the text into a specialized format." *Id.* at 68,475.

¹⁵ See 2010 AFB Comment at 6, 8–9.

¹⁶ Recommendation of the Register of Copyrights in RM 2008-8 at 255, Rulemaking on Exemptions from Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies (June 11, 2010) [hereinafter 2010 Recommendation], available at www.copyright.gov/1201/2010/initial-registers-recommendation-june-11-2010.pdf. At a May 8, 2009 hearing, the Copyright Office's then-General Counsel David Carson suggested that AFB had either failed to take the Office's evidentiary standards into account, or ignored them altogether. See Copyright Office Hearing Transcript, May 8, 2009, at 11–20, available at <http://www.copyright.gov/1201/hearings/2009/transcripts/1201-5-8-09.txt> ("When you prepared this year, did you have -- did you take into account at all what the Register had said three years ago, what I just repeated to you? . . . And you decided to ignore it?").

¹⁷ See *id.* at 250 ("The Joint Creators . . . do not oppose renewal of the exemption related to literary works in ebook format if the Register and the Librarian conclude that the proponent meets its burden of persuasion during this proceeding.") (internal quotations omitted).

¹⁸ *Id.* at 259.

¹⁹ *Id.* at 260–61.

²⁰ *Id.* at 260, 262 ("[T]he lack of evidence that an existing exemption has been used suggests that there is no need for such an exemption. . . . The AFB's failure to inquire and report on the benefits or deficiencies of the existing exemption serves only to diminish the already inadequate evidentiary support for the need for an exemption.").

exemption, and decided to extend the class for another three years.²¹ Setting aside the evidentiary concerns that served as the crux of the Register's decision not to renew the exemption class, the Librarian explained that the record was adequate to support renewal of the exemption,²² and that the Office should have submitted follow-up questions to the AFB (as it had in the 2003 and 2006 rulemakings) if it felt the record needed more development.²³

2012 Proceeding. In its proposed exemption class for the 2012 cycle, AFB and its joint commenter American Council of the Blind ("ACB") *did* cite to some press reports and academic studies that demonstrated the extent of the eBook accessibility problem in an attempt to satisfy the Register's strict evidentiary requirements and avoid a repeat of the unwarranted negative recommendation in 2010.²⁴ While attempting to satisfy the Register's evidentiary requirements, however, AFB also challenged the Register's interpretation of Section 1201's standard for adverse impact. AFB explained that—contrary to the Register's unnecessarily strict approach and consistent with the Librarian's 2010 decision—anecdotal first-hand evidence is entirely appropriate to satisfy the applicable legal standard:

Granting an exemption is not conditioned by law on the ability of advocates to demonstrate that some arbitrary percentage of the publishing industry violates the fair use rights of people with disabilities. Rather, the exemption we propose herein must be granted to ensure that even an isolated instance where an individual user with print disabilities cannot read the material without first circumventing access controls does not expose the user to severe penalties. In previous proceedings, advocates presented the Copyright Office with a handful of examples of e-books inaccessible to people who are blind or visually impaired. In the most recent proceeding, the Copyright Office seemed to suggest that advocates ought to have presented dozens or even hundreds of such examples even though such an array of examples would represent decimal dust in comparison to the total number of available e-book titles. While the exemption we propose herein is needed even if it only benefits a single user during the three-year term of the exemption, we know that the vast universe of inaccessible titles will make the exemption we propose of critical value to many.²⁵

Although the Register did not directly address AFB's interpretation of the appropriate evidentiary standard in the 2012 Recommendation, she did approve an expanded version of AFB's proposed exemption class. Moreover, the Register relied primarily on press accounts and

²¹ 2010 Final Rule at 43,838 ("The Librarian has considered but rejected the Register's recommendation with respect to the proposed class of works consisting of literary works distributed in ebook format.").

²² *Id.* ("[T]he proposed exemption should be granted because: (1) the record includes statements on the likelihood of access not being available to blind individuals, (2) no one opposed the exemption, and (3) there are broad benefits to society in making works accessible to the visually impaired.").

²³ *Id.* ("The Librarian notes that, in contrast with its actions in both 2003 and 2006, the Copyright Office did not submit any post-hearing questions on this proposed exemption. Such development of the record would have been helpful.").

²⁴ See 2012 AFB Comment at 9–10 ("[T]he Nook and Kindle stores combined may carry approximately 1.8 million inaccessible e-book titles,").

²⁵ *Id.* at 6–7.

public policy considerations rather than extensive statistical evidence to support that decision.²⁶ Finally, the Register explained that the exercise of analyzing individual literary works to determine indicia of accessibility was no longer necessary, given widespread understanding that eBooks were either inaccessible or only partially accessible.²⁷ The Librarian approved the expanded exemption without alteration.²⁸

2015 Proceeding. After seemingly focusing more on the obvious, continuing realities of the eBook marketplace and usage, and thus endorsing less onerous evidentiary requirements in the 2012 cycle, the Copyright Office explicitly reinstituted many of the most burdensome evidentiary prerequisites in the 2015 proceeding. Unlike previous notices of proposed rulemaking (“NPRMs”), which simply listed proposed exemption classes and requested comments,²⁹ the NPRM for the 2015 cycle tasked exemption proponents with compiling data in response to several specific evidentiary questions.³⁰ In particular, the Office reinstituted the “sample” requirement that it had dispensed with in the previous cycle, and asked AFB and other proponents to compile “a significant representative sample of titles across various e-book formats that are otherwise inaccessible.”³¹ In response, AFB submitted a substantially longer and more detailed comment than it had in years past,³² even though its exemption renewal request was once again unopposed.³³ Based on the Register’s Recommendation, the Librarian renewed the exemption for another three year period.³⁴

B. The current exemption process relies on unwarranted and overly strict evidentiary requirements that impose unnecessary burdens, costs, and uncertainty on participating parties.

²⁶ See Recommendation of the Register of Copyrights in RM 2011-7 at 18, 21, Fifth Triennial Proceeding to Determine Exemptions to the Prohibition on Circumvention (Oct. 12, 2012) [hereinafter 2012 Recommendation], available at http://copyright.gov/1201/2012/Section_1201_Rulemaking_2012_Recommendation.pdf (“Although precise figures remain elusive, press accounts cited by the proponents suggest that only a fraction of the publicly available ebooks are accessible. . . . Generally, public policy favors removing impediments to access for individuals with disabilities, and the notion that an individual ought to be required to invest in three (or more) competing electronic book platforms would appear to be contrary to that policy.”) (internal citations omitted).

²⁷ See *id.* at 21 (“[B]ecause the record indicates that the majority of ebooks available through commercial channels are either inaccessible or, at best, only somewhat accessible, there is no need to analyze specific titles to see if they are inaccessible, as done in the past.”).

²⁸ Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, 77 Fed. Reg. 65,250, 66,262–63 (Oct. 26, 2012) (codified at 37 C.F.R. pt. 201) [hereinafter 2012 Final Rule].

²⁹ See, e.g., Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, 73 Fed. Reg. 79,425 (proposed Dec. 29, 2008) (to be codified at 37 C.F.R. pt. 201) [hereinafter 2009 NPRM]; Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, 76 Fed. Reg. 78,866 (proposed Dec. 20, 2011) (to be codified at 37 C.F.R. pt. 201) [hereinafter 2012 NPRM].

³⁰ Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, 79 Fed. Reg. 73,856, 73,863 (proposed Dec. 12, 2014) (to be codified at 37 C.F.R. pt. 201) [hereinafter 2015 NPRM].

³¹ *Id.* at 73,863.

³² See generally 2015 AFB Comment.

³³ 2015 Recommendation at 133 (“There was no opposition to renewing the 2012 exemption.”).

³⁴ Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, 80 Fed. Reg. 65,944, 65,950 (Oct. 28, 2015) (codified at 37 C.F.R. pt. 201) [hereinafter 2015 Final Rule].

Starting with the 2003 Section 1201 rulemaking, AFB and its pro bono counsel have proposed exemption classes with a singular goal in mind: equalizing access so that individuals with print- and vision-disabilities can benefit from the exploding growth in literary digital publications by making non-infringing uses of those works. The needs of print- and vision-disabled readers to make these uses have persisted over time, and yet each demonstration of those needs and the importance of a 1201 exemption has been short-lived. Even though there has been no opposition to the last four exemption requests, the Register has continued to insist on a full, de novo demonstration every three years that the previously granted exemption should be renewed. Furthermore, because the Register has failed to settle on one set of evidentiary standards by which it will judge exemption proposals, parties like AFB are largely unable to anticipate the Office's cycle-to-cycle requirements with any certainty and prepare an appropriate evidentiary record.

Moreover, each triennial process, particularly the most recent, has been governed by an unnecessary and overly strict adjudicatory-style process and a set of complex evidentiary burdens that simply are not required by the DMCA.³⁵ As just one example, in the 2010 rulemaking, the Register's insistence that proponents demonstrate the absence of *any* alternatives before deeming an exemption warranted was particularly egregious:

However, as the Joint Reply Commenters pointed out, AFB did not test all of the ebook formats in which the sampled book titles were available. For instance, AFB tested *The Imitation of Christ*, by Thomas A. Kempis, in the Microsoft Reader LIT Format and found that work to be inaccessible whether or not Microsoft's text-to-speech product was installed. However, the Joint Reply Commenters pointed out that the same title appeared to be available in the Adobe format with the read-aloud function enabled.³⁶

The Office adopted an evidentiary standard that required AFB to establish that there were no versions of works that could be accessed without circumvention, even if that access might require the print-disabled reader to engage in burdensome or costly searches for different formats of works or to abandon their current eBook reader and invest in a different eBook platform (or several) to take advantage of a work accessible only in that format. These requirements were then, and are now, unwarranted, overly strict, and not required by the language of the DMCA.

As a result of the Copyright Office's strict demands on proponents in rulemakings, AFB—along with numerous other parties proposing exemption classes—has been hindered by the burden, cost, unpredictable and inconsistent results, and resulting uncertainty that have become the hallmarks of the Section 1201 triennial process.

In the recently concluded sixth triennial rulemaking, AFB was fortunate to be represented pro bono by the University of Colorado Law School's Samuelson-Glushko Technology Law and Policy Clinic (the "Clinic"). AFB did not seek any alteration of the exemption class designated in

³⁵ For a detailed explanation of the lack of any statutory basis for many of the current rulemaking requirements, see Harvard Law School Cyberlaw Clinic, *supra* note 3.

³⁶ 2010 Recommendation at 254. AFB and other proponents have subsequently convinced the Register to adopt an exemption that better addresses the reality of eBook products and the market as a whole.

the prior rulemaking; rather, it simply sought a “renewal of the exemption previously granted by the Librarian of Congress in the 2012 triennial review.”³⁷ Although there was (again) no meaningful opposition to the AFB’s request for renewal,³⁸ attempting to meet all of the requirements listed in the Notice of Proposed Rulemaking required a substantial investment of the AFB’s and the Clinic’s time and resources. Law students participating in the Clinic worked 527.2 pro bono hours to prepare the AFB’s submissions, a figure that does not include any of the time of the supervising attorneys.³⁹ At a conservative hourly rate of \$180, those efforts would have cost AFB \$94,896 (again, not even counting the hourly rates of supervisors) if it had not been able to secure the assistance of pro bono counsel.⁴⁰ This cost would need to be repeated every three years. It is reasonable to expect that this cost and the difficulty of securing pro bono representation deters some individuals and organizations from participating in the triennial rulemaking process.

Parties who can afford to craft exemption proposals or who can secure pro bono representation still have to grapple with the Office’s overly strict and inconsistent evidentiary standards. The Register’s responses to AFB’s submissions are illustrative of this problem: the Register largely adopted AFB’s proposed classes in the 2003 and 2006 rulemakings, even though AFB used anecdotal evidence and first-hand experience to substantiate many of its claims.⁴¹ In 2010, the Register refused to renew the AFB’s proposed exemption class, and excoriated the AFB for (i) failing to provide a sufficient sample of inaccessible literary works and (ii) for omitting data detailing use of the existing exception.⁴² In the 2012 rulemaking, the Register dropped its earlier insistence on a sufficient sample of inaccessible literary works and returned to the 2003/2006 paradigm, accepting anecdotal evidence, media reports, and policy arguments as permissible evidentiary foundations for an exemption request.⁴³ Finally, in the 2015 cycle, the Office reinstituted its sample requirement, asking AFB and its fellow proponents to provide “a significant representative sample of titles across various e-book formats that are otherwise inaccessible.”⁴⁴

This whipsawing between evidentiary standards produces inconsistent results across rulemakings, muddies decision-making criteria, and creates additional burdens and costs for parties seeking to propose exemptions. Unlike many industry organizations or rights holders, public interest organizations like AFB are poorly positioned to spend thousands of dollars to compile statistical data and prepare extensive written comments. Nor can they rely on pro bono counsel for each successive round: legal clinics and private practitioners have limited resources and bandwidth. AFB’s access to, and chance of success in, the 1201 process should not be

³⁷ 2015 AFB Comment at 2.

³⁸ See Recommendation of the Register of Copyrights in RM 2014-07 at 133, Sixth Triennial Proceeding to Determine Exemptions to the Prohibition on Circumvention (Oct. 8, 2015) [hereinafter 2015 Recommendation], available at <http://copyright.gov/1201/2015/register-recommendation.pdf>.

³⁹ Email from Blake Reid, Director, Samuelson-Glushko Technology Law & Policy Clinic, to author (Feb. 29, 2016, 9:42 AM PST) (on file with author).

⁴⁰ See LAFFEY MATRIX, <http://www.laffeymatrix.com/see.html> (last visited Mar. 1, 2016).

⁴¹ See 2003 Recommendation at 75–79; 2006 Recommendation at 39–40.

⁴² See 2010 Recommendation at 260. Fortunately, the Librarian saw no need for that type of evidence and rejected the Register’s recommendation. See *supra* notes 21–22 and accompanying text.

⁴³ See 2012 Recommendation at 18, 21.

⁴⁴ Exemption to Prohibition on Circumvention of Copyright Protection Systems for Access Control Technologies, 79 Fed. Reg. 73,856, 73,863 (proposed Dec. 12, 2014) (to be codified at 37 C.F.R. pt. 201).

conditioned upon its ability to (i) spend tens of thousands of dollars, (ii) provide extensive empirical evidence that may or may not be required, or (iii) find effective pro bono representation. The Office should recognize these issues and address these problems by making some commonsense changes to its triennial rulemaking process.

C. Exemptions should be presumptively renewed absent a compelling demonstration by opponents that they are no longer warranted

AFB submits that the Office could address many of the Triennial Rulemaking's recurrent problems by providing for presumptive renewal of existing exemptions, whether there is opposition or not. Once the Office has designated an exemption class, and if there is opposition to renewal, the burden should fall to the opponents of renewal to establish that factual conditions have changed and that the exemption class is no longer necessary to prevent adverse impacts on non-infringing use. Similarly, if factual conditions have changed such that an expansion or clarification of the previous exemption is sought, any new consideration should begin with the presumption of renewal at least for the existing portion of the exemption. While other comments explain in detail how the statutory language and legislative history support a reading of the statute that finds the Office has such authority,⁴⁵ AFB's comment provides insights into why such an approach would ease the burden on the Office as well as on prospective commenters.

Embracing presumptive renewal and burden shifting would resolve the paradox at the heart of the current 1201 process: commenters seeking renewal of an existing exemption have to meet the adverse impact criteria anew every three years, even as the existing exemption is succeeding in facilitating non-infringing use of copyrighted works. In other words, it becomes more difficult to empirically demonstrate adverse impact resulting from a technological protection measure when an existing exemption is succeeding in addressing that very problem. Rather than requiring renewal proponents to provide exemption utilization rates as a proxy for continuing validity and merit, the Office should presume that the exemption is still needed and working. It should shift the burden to opponents to produce commensurately robust evidence that the market has changed in ways that eliminate the underlying barriers to non-infringing uses that justified the exemption in the first place. In addition to resolving the evidentiary paradox, this approach would produce a much more equitable distribution of evidentiary burdens, would rely on market data that is more easily measured and readily available than exemption utilization rates, would ensure a more orderly and fair rulemaking process, and would effectuate Congress's underlying market-oriented purposes.

Adopting a framework that provides for presumptive renewal and burden shifting would also offer additional benefits. Budget-constrained organizations like AFB are much more likely to marshal resources, concentrate efforts, and provide extensively researched submissions if they know that they won't be required to repeat the very same process three years later. Similarly, rights holders are unlikely to invest time and energy into challenging a presumption of renewability unless they have evidence, are able to demonstrate sufficiently changed market or usage conditions, and can provide a principled rationale for non-renewal. The Office stands to benefit from such a policy change as well, as it would significantly reduce the concomitant time and effort required to evaluate unopposed exemptions, or those exemptions for which opponents

⁴⁵ See generally Inst. of Scrap Recycling Indus. Inc., Comments of the Institute of Scrap Recycling Industries, Inc., Docket No. 2015-8.

are unable to make a showing of substantial change from previous conditions. As addressed in the following section, such an approach would also bring the U.S. into compliance with its international commitments.

NOI QUESTION 9: PLEASE ASSESS WHETHER THERE ARE OTHER PERMANENT EXEMPTION CATEGORIES THAT CONGRESS SHOULD CONSIDER ESTABLISHING—FOR EXAMPLE, TO FACILITATE ACCESS TO LITERARY WORKS BY PRINT DISABLED PERSONS?

As the question suggests, the exemption which currently allows blind, visually impaired, and print-disabled people to access literary works is the quintessential example of an exemption category that should be made permanent. The Section 1201 rulemaking process imposes substantial burdens and considerable legal uncertainty on the millions of visually-impaired and print-disabled individuals who rely on these exemptions to conduct their everyday business, leisure, and study. This repeated triennial process is especially absurd given that the exemption for the blind and visually impaired enjoys near universal support. The United States played a “leadership role” in enacting the Marrakesh Treaty,⁴⁶ which obliges member nations to provide this exemption and otherwise use their legal authority to facilitate access to published works for persons who are blind, visually impaired, or otherwise print disabled.⁴⁷ The 1201 process, which currently fails to provide any presumption in favor of renewal of even universally accepted exemptions, puts the United States in a position of reliance on the continued successful participation of a private, nonprofit advocacy organization to prevent a breach of our treaty obligations. In fact, a permanent exemption may be required by the treaty, as placing the burden on individuals with disabilities or their representatives to obtain an exemption every three years contravenes the treaty’s main goal of creating “mandatory limitations and exceptions for the benefit of the blind, visually impaired, and otherwise print disabled.”⁴⁸

The burdens of the 1201 exemption process are even less justifiable because they acutely impact blind, visually-impaired, and print-disabled individuals. Digital accessibility is especially important for this population: gaps in resources and education can make it more difficult for these individuals to meaningfully participate in all aspects of social and democratic dialogue. Lack of accessibility can have powerful disenfranchising effects. Accordingly, the drafters of the Marrakesh Treaty made full access by the disabled a point of emphasis in their negotiations. The Treaty recognizes that roadblocks to full accessibility are:

prejudicial to the complete development of persons with visual impairments or other print disabilities, [and] limit their freedom of expression, including the freedom to seek, receive and impart information and ideas of all kinds on equal

⁴⁶ Barack Obama, *Message to the Senate -- The Marrakesh Treaty to Facilitate Access to Published Works for Persons Who Are Blind, Visually Impaired, or Otherwise Print Disabled*, THE WHITE HOUSE (Feb. 10, 2016), <https://www.whitehouse.gov/the-press-office/2016/02/10/message-senate-marrakesh-treaty-facilitate-access-published-works>.

⁴⁷ *Summary of the Marrakesh Treaty to Facilitate Access to Published Works for Persons Who Are Blind, Visually Impaired or Otherwise Print Disabled (MVT) (2013)*, WORLD INTELLECTUAL PROP. ASS’N (last visited Mar. 1, 2016), http://www.wipo.int/treaties/en/ip/marrakesh/summary_marrakesh.html

⁴⁸ *Id.*

basis with others, including through all forms of communication of their choice, their enjoyment of the right to education, and the opportunity to conduct research.⁴⁹

Imposing further civic burdens on disabled individuals and requiring them or their representatives to repeatedly apply for exemptions as a precondition for equal access is deeply insensitive and harmful.

CONCLUSION

The foregoing demonstrates the fundamental and substantial flaws of the Section 1201 rulemaking process as presently structured by the Copyright Office. The current framework imposes substantial burdens and costs on disabled individuals, on parties to the rulemaking, and on the Office itself. Visually-impaired persons should never have been required to seek permission to use vital assistive technology to read lawfully purchased copies of literary works in the first place. After fighting successfully for an exemption to facilitate this vital access, these same beneficiaries should not have to worry about losing it every three years. Those representing the beneficiaries should not be required to continuously collect and provide substantial evidence and arguments merely to maintain the status quo, especially when there is no opposition to renewing the exemption.

Accordingly, AFB urges the Copyright Office to recognize the significant and unnecessary burden that its current Section 1201 process imposes on print- and visually-disabled persons, as well as proponents of other exemptions for non-infringing uses of works. AFB recommends that the Office reconsider its previous determinations that it lacks the necessary authority to make these changes, and then adopt a policy that provides for presumptive renewal of existing exemptions and places the burden of justifying non-renewal on opponents. Such a policy would (i) ease the administrative burden on the Office, (ii) address Congress's concern that Section 1201 not adversely impact non-infringing users of copyrighted works, and (iii) bring U.S. copyright law into conformity with international agreements.

⁴⁹ Marrakesh Treaty to Facilitate Access to Published Works for Persons Who Are Blind, Visually Impaired, or Otherwise Print Disabled, pmbl., June 27, 2013, WIPO Doc. VIP/DC/8 Rev [hereinafter Marrakesh Treaty].